

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. Crl. Misc. No.16440-B/2026

Arshad Mehmood

Vs

The State, etc.

Sr. No.	Date of order	Order with signature of Judge, and that of parties or counsel, where necessary.
---------	---------------	---

01.04.2026 Ch. Zulfiqar Ali Hargan, Advocate for the petitioner.
Mr. Muhammad Waqas Anwar, Deputy Prosecutor General
for the State alongwith Sarfraz, S.I. and record of the case.

Through instant petition, **Arshad Mehmood** (petitioner)
has sought post-arrest bail in case arising out of
F.I.R.No.993/2025 dated: 25.12.2025 registered under Section:
9(2)6 of the Control of Narcotic Substances Act, 1997 at Police
Station: Phularwan, District Sargodha.

2. Briefly, as per case of prosecution narrated in the F.I.R., on
25.12.2025, petitioner was apprehended by Muhammad Umar,
Inspector and other police officials and on his personal search,
1100 grams of *Methamphetamine (ICE)* and amount of Rs.800/-
were recovered from his possession; for ready reference, Crime
Report (F.I.R.) is hereby scanned below: -

[illegible]

3. Learned Deputy Prosecutor General at the very outset under instructions of police official (present in Court) and after himself going through the available record submits that as per Crime Report (F.I.R.), *Methamphetamine (ICE)* weighing 1100 grams was recovered from the petitioner and sample taken out from the same was sent to Punjab Forensic Science Authority, Lahore for chemical analysis, however, as per report of said Authority, *Methamphetamine (ICE)* has not been confirmed in said sample rather it was Aluminium Ammonium Sulfate which has been clearly mentioned in said report as non-controlled substance.

It is relevant to mention here that Aluminum Ammonium Sulphate is also known as Ammonium Alum, its chemical formula is “ $(NH_4)Al(SO_4)_2$ ”. It is commonly found in its hydrated form i.e. “ $(NH_4)Al(SO_4)_2 \cdot 12H_2O$ ” (Aluminum Ammonium Sulphate Dodecahydrate), which appears as white crystals or Powder. It is widely used for its excellent coagulating, clarifying, and antiseptic properties. Aluminum Ammonium Sulfate is an “Inorganic Salt” and not a “Narcotic Drug”.

In view of above, when as per crime report (F.I.R.), Methamphetamine (*ICE*) was recovered from the petitioner whereas

according to report of Punjab Forensic Science Authority, Lahore, Methamphetamine (ICE) was not confirmed in parcel of sample (as detailed above) rather it was non-controlled substance, then, on the one hand reasonable grounds are not available on the record to connect the petitioner with the commission of alleged offence whereas on the other hand case of prosecution against the petitioner requires further probe/inquiry within the purview of sub-section 2 of Section: 497 Cr.P.C; petitioner was arrested in the case on 25.12.2025 and sent to jail on 26.12.2025 where he is confined till now. He has not been previously convicted in any narcotic case as apprised by learned Deputy Prosecutor General. In aforementioned circumstances, mere detention of the petitioner in lockup would serve no useful purpose to the case of prosecution. Bail cannot be withheld as advance punishment.

4. By now it is well settled that it is better to err in granting bail than to err in refusal because ultimate conviction and sentence can repair the wrong resulted by a mistaken relief of bail; in this regard, case of **“CHAIRMAN, NATIONAL ACCOUNTABILITY BUREAU through P.G., NAB versus NISAR AHMED PATHAN and others” (PLD 2022 Supreme Court 475)** can be advantageously referred and its relevant portion from Page No(s).480-481 is reproduced: -

“To err in granting bail is better than to err in declining; for the ultimate conviction and sentence of a guilty person can repair the wrong caused by a mistaken relief of bail, but no satisfactory reparation can be offered to an innocent person on his acquittal for his unjustified imprisonment during the trial.”

5. For the foregoing reasons, it is fit case for grant of bail under sub-section (2) of Section: 51 of the Control of Narcotic Substances Act, 1997, hence, instant petition filed by Arshad Mehmood (petitioner) for grant of post arrest bail is **allowed** and he is admitted to bail in the case subject to his furnishing bail bonds in the sum of Rs.3,00,000/- (Rupees three hundred thousand only) with two sureties each in the like amount to the satisfaction of trial court.

6. It is, however, clarified that observations mentioned above are just tentative in nature and strictly confined to the disposal of instant bail petition.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

APPROVED FOR REPORTING.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

This order has been dictated, pronounced,
prepared and signed on 01.04.2026.

Irfan